

Our Services

The Platform allows its Users who agree to the Terms to order from its partnered restaurants, vendors, groceries etc. that may be operated by third parties or affiliated companies (hereinafter referred to as the “**Merchants**”).

The purpose of this Platform is to provide a simple and convenient service to Users, linking them to Merchants in their area for delivery (our “**Service**”) to order a variety of goods including prepared meals, beverages, non-prepared food and miscellaneous non-food items (hereinafter collectively referred to as “**Goods**”). Interactive options allow Users to build and submit orders at the click of a button. When you place an order from a Merchant, Talabat acts as a facilitator on behalf of that Merchant to conclude your order from the Platform and to manage your experience throughout the order processing. We have created the Platform to serve as a marketplace for its Users.

Talabat does not sell or interfere in any way in the production of any goods or service produced by the Merchants. What this online market offers to the Users is the ability to search for and find local Merchants that deliver or make these Goods available to their addresses and enables ordering them through this Platform. The Merchants are obligated to comply with the country’s local laws, rules, regulations, and standards pertaining to goods and services preparation, sale, marketing and safety.

However, it is important for Users to understand that Talabat does not in any way independently verify the credentials, representations or products of Merchants, the ingredients or the quality of any products, or that a Merchant is in compliance with applicable laws. Users must make themselves comfortable through information provided by Merchants on the Platform or as requested by Users directly from the Merchants as to the quality and reliability of the Merchants, as well as to their compliance with applicable laws.

We reserve the right, but are not obligated, to restrict or limit the sales of our Goods to any person, geographic region or jurisdiction. Due to the laws in some countries, we shall not offer for sale certain goods, or restricted items to you. Any offer for any Goods made on the Platform is void when it is prohibited by law.

Talabat does not in any way guarantee the quality of any Goods or that any Goods complies with applicable laws and does not guarantee matching the list of Goods displayed on the Platform to what is actually provided to the Users. In addition, a Merchant may represent that goods and services preparation is in accordance with special standards, for example

(including without limitation) to "organic," "macrobiotic" or allergen-specific standards, for example (including without limitation) "nut-free", "gluten-free", or "lactose-free". However, Talabat is not obligated to provide ingredient information or allergen information on the Platform. Further, Talabat does not guarantee that the Goods sold by Merchants are free of allergens, unless otherwise required by applicable laws. If you have allergies, allergic reactions or dietary restrictions and requirements, please contact the Merchant before placing an Order on our Platform. as Talabat does not independently investigate or verify such representations.

Talabat and the Merchants (as the case may be) reasonably endeavor to comply with your special instructions for an Order. However, in some cases where this is not feasible, possible or commercially reasonable, Talabat and/or the Merchants reserve the right to proceed to prepare the Order in accordance with standard operating procedures. Neither Talabat nor the Merchants shall be responsible to replace or refund an Order which does not conform to special instructions provided by you.

Talabat shall not be liable or responsible for any goods and services offered by Merchants that is unhealthy, is the cause of injury, that is otherwise unacceptable to Users or that does not meet the expectation of Users in any manner.

Users are solely responsible for verifying the accuracy of delivery addresses, and Talabat shall have no liability or responsibility for any such erroneous addresses. All goods and services preparation and deliveries are the sole responsibility of the Merchant accepting the order. Please be aware that the Merchant will do everything they can to meet the delivery time specified, however delivery times may be affected by factors beyond their control and therefore cannot be guaranteed. We will inform you if we become aware of an unexpected delay.

Creating an Account for the Platform

A User can create an account on the Platform and can determine their own “user name” and “password” which are determined by the User herself/himself. The "user name" is personal to the User and the same “user name” is not given to two different Users. The “password” is only known by the user. The user can change the password at any time. It is solely under the responsibility of the user to select and protect the password. Talabat is not liable for any problems, which may arise from the use of password. Talabat informs the user about the promotions, which take place in the user’s area and from which the user may benefit, by emails. Talabat may share your username and password with the third party companies for the purpose of providing our Service – for example, the phone number may be shared with the Merchant which deals with take-out goods and services, in order to provide a faster and correct delivery. For the user to connect to the services, which require an Account of the Platform, the user must enter the user name and password. This process is called “login” to the Platform.

By using this Platform, you warrant that any personal information provided by you is true, accurate, current and complete in all respects and that you will notify us immediately of any changes to your personal information by updating your User profile on the Platform or by contacting us, you agree not to impersonate any other person or entity or to use a false name or a name that you are not authorized to use.

You are not allowed to register multiple Accounts for use by the same person. Violation of this clause may result in termination of your account. Users' passwords should be kept confidential at all times and must not be shared or disclosed to anyone. You are responsible for all activities and orders that occur or are submitted through your Account. If you know or suspect that someone has knowledge of your password, then you should contact us immediately.

You may not use the Platform for any unlawful or unauthorized purpose, including without limitation to:

1. Distributing any unlawful, libelous, abusive, threatening, harmful, obscene or otherwise objectionable material. Transmitting material that constitutes a criminal offense, results in civil liability or otherwise breaches any laws, regulations or codes of practice.
2. Interfering with any other persons use or enjoyment of the Platform.

3. Damaging, disabling or impairing the operation of this Platform or attempting to gain unauthorized access to this Platform or to networks connected to it, through hacking, spoofing or other such similar means.

We expect a device to hold one User account only. We may allow service in such cases but we will not allow the use of promotions.

If you wish to delete your Account, please contact us via the Platform chat feature requesting the same.

How to make an order and how it works

Once you have selected your Goods from the list of your chosen Merchant you will be given the opportunity to submit your order by clicking on the “Checkout” button (the “**Order**”). Please note it is important that you check the information that you enter and correct any errors before clicking on the “Checkout” button since once you click on this input, errors cannot be corrected. On receipt of your order, the Platform will begin processing your order and we will send an email and message on the final page that your order has been received and sent successfully to the Merchant. Where any payment you make is not authorized you will be returned to the previous page on the Platform and we shall not be obliged to provide the services.

Order Cancellation

You can cancel an order for a full refund until the order has been accepted by the Merchant. In the event that you need to cancel the order after it has been accepted by the Merchant, please contact us via the chat function on the Platform to cancel the order. Talabat reserves the right to not issue full or partial refunds if you have canceled the order after it has been accepted.

An order may be subsequently canceled by a Merchant after you have received a confirmation that it has been sent to the Merchant. Talabat and our partner Merchants reserve the right to cancel any order, before or after acceptance, and will notify you immediately of any such cancellation. Your order history will only hold your successful orders, and in case of failed online payment, the Order amount will be refunded to your Talabat account as Talabat credit unless you request a refund to the original source of payment account which will take place within 7-14 days as per your bank.

For non-food vertical orders, any cancellation, return, or refund of items or orders shall be in accordance with the consumer protection laws and regulations applicable in Egypt. For the avoidance of doubt non-food vertical orders means any order from a shop under groceries, flowers, electronics, health & beauty.

Delivery

You understand that the available goods offered by Talabat may vary from delivery area to delivery area. By entering your delivery address on the Platform, you will see the Merchants that we make available to you at that time. Delivery areas may expand, shrink or change depending on different conditions such as: weather, traffic, situations of force majeure, etc.

Delivery Time

Talabat shall deliver your Order to the delivery address provided by you. An estimated delivery time will be provided to you in your email confirmation as well as on the order tracking page. However, delivery times shall vary depending on factors that are not controllable (e.g. order quantity, distance, time of day (peak periods), weather conditions, traffic conditions, etc.). You can view the remaining delivery time of an Order when you click on 'My orders' on the Platform. You acknowledge that the delivery time we provide is only an estimate and Orders may arrive earlier or later. To ensure that you do not miss a delivery of an Order, you should ensure that either you or someone is at the delivery location to receive the Order once an Order is placed.

Unsuccessful or Failed Deliveries

Without prejudice to any other clauses in these Terms, in cases where we attempt to deliver an Order but we are unable to do so due to the reasons caused by you, including but not limited to:

1. no one was present or available to receive the Order;
2. customer was uncontactable despite attempts to reach the customer via the phone number provided;
3. lack of appropriate or sufficient access to deliver the Order successfully;
4. lack of a suitable or secure location to leave the Order.

We will contact you via, among others, in-app call or message, or email, to inform the unsuccessful delivery and next steps. In such cases, Talabat reserves the right to cancel the Order without refund or remedy to you.

No Show Cancellation

If you remain uncontactable or fail to receive the Order within reasonable time from the time the Order arrives at your delivery address, Talabat reserves the right to cancel the Order without refund or remedy to you.

Wrong Order, Missing Order, Defective Items

Upon receipt of your Order, if you discover that there are issues with your Order (e.g. wrong order, defective order, or missing items) please contact customer support via our in-app customer support chat feature immediately. In some cases, Talabat may request for photographic proof and/or additional information to properly investigate the issue with your Order. If we determine that the Order and/or goods you received are not of satisfactory condition or quality, we will compensate you for your Order or parts of your Order.

Late Delivery

If your Order is significantly delayed from the estimated delivery time, please contact customer support via our in-app customer support chat feature immediately. In some cases, Talabat may request for additional information to properly investigate the issue with your Order. If we determine that the Order and/or goods you received is significantly delayed we will compensate you for your Order.

Contactless Delivery

As one of the delivery options, the customer may select (for some of the offered goods) contactless delivery (the delivery of the Order to the front door of a specified delivery address without face-to-face interaction for instance). Talabat shall not be liable for theft, damage, contamination and/or other deterioration of the goods that occur after delivery has taken place.

Pick-up Services

Pick-up Process

Where available as indicated on the Platform, you will have the option of collecting your Order in-person directly from the Merchant's premises ("Pick-Up") instead of having the Order delivered to You. Your email confirmation will indicate the time for you to take-out the Order ("Collection Time"). The Merchant will prepare the Order by the Collection Time. In some cases, a reasonable delay may be expected. The Merchant agrees to hold the Order for you at the Merchant's premises for no more than a reasonable period of thirty (30) minutes from the Collection Time ("Holding Time") and shall not be obliged to provide the Order to you if you fail to take-out your Order within the Holding Time.

Pick-up Liability

In the event of unreasonable delays in Pick-Up attributable to you, you bear the risk of any damage or loss of Goods or any deterioration in quality or change in condition of the Goods (e.g. changes in the temperature fit for consumption). In this case, you shall not be entitled to a refund or replacement of the Goods. You alone are responsible for inspecting the Goods/Order when you Pick-Up your Order and shall report any issues and/or defects to the Merchant, as a recipient of messages for Talabat, before leaving the Merchant's premises.

User Responsibilities

During the use of the services of the Platform, the User accepts and undertakes:

1. The information provided to us is correct. The User is the only party responsible for any losses which may arise from any misinformation or inadequate information (ex. forgetting the password); and in these cases his/her Account may be terminated.
2. The User is solely responsible for all personal ideas, opinions, statements set forth by the User while using the services of the Platform, all the files uploaded to the Platform and the personal information sent, and that in no way Talabat shall be held liable for these files, not to access any services provided in the Platform unauthorized and in any way other than the one identified by the Platform; not to change the software in any way; not to use the software which is identified as being changed; and to indemnify Talabat for all material and moral losses in the event the User does not comply with the aforementioned articles, Talabat shall not be responsible for any damages which may arise from reading of data belonging to any Users by any unauthorized people, not to send any messages which are threatening, immoral, racially and contrary to the laws of Egypt and international agreements, any correspondences, titles, nicknames posted to the context shall not be contrary to the rules of public morality, good manners and laws, not to harass and/or threaten other users, or any of the Platform live chat personnel, not to act in a way affecting the use of services by other users, not to post, print, distribute, circulate any amoral, inappropriate and unlawful materials and information which may give harm to the names of any people or institutions, not to advertise, sell or offer to sell any products or services, engage in any activities such as survey, competition or chain letter, not to send any information or programs which may give harm to the information or software in the computers of other users.
3. All of the records or materials obtained by using the services of Talabat are within the consent of the user; the user shall be absolutely responsible for any damages, loss of information or other losses caused by them in the user's computer; the user shall not demand any compensation for any losses arising from the use of the service, not to use the services of the Platform for any commercial and advertising purposes without obtaining the consent of Talabat. Talabat may monitor all systems at any time or continuously.
4. The Platform may use its system for commercial purposes, not to mail any information which is forbidden legally and circulate any mails which do not have authorization to be sent such as chain mail, malicious software, etc., not to record

and misuse any personal information belonging to others, The User himself/herself is responsible for all kinds of acts made under the “username”, The clients must pay the service fee which is notified previously at the time of delivery of products; otherwise the products shall not be delivered to the clients. not to access the Platform or services using a third-party's account/registration without the express consent of the account holder; not to use the Platform for illegal purposes; not to commit any acts of infringement on the Platform or with respect to content on the Platform; not to use the Platform to engage in commercial activities apart from sanctioned use of Talabat services; not to copy any content, including, but not limited to Merchant menu content and third-party reviews, for republication in print or online; not to create Merchant reviews or blog entries for or with any commercial or other purpose or intent that does not in good faith comport with the purpose or spirit of the Platform; not to attempt to gain unauthorized access to other computer systems from or through the Platform; not to interfere with another person's use and enjoyment of the Platform or another entity's use and enjoyment of the Platform; not to upload or transmit viruses or other harmful, disruptive or destructive files; and/or not to disrupt, interfere with, or otherwise harm or violate the security of the Platform, or any services, system resources, accounts, passwords, servers or networks connected to or accessible through the Platform or affiliated or linked Platforms (including those of our Merchant partners).

5. All users who are minors in the jurisdiction in which they reside must have the permission of, and be directly supervised by, their parent or guardian to use the Platform. If you are a minor, you must have your parent or guardian read and agree to this Agreement prior to you using the Platform. Credit or Debit cards used in placing orders through the online payment gateway on the Platform must belong to the user. Otherwise, the user must obtain the legal permission from the card owner to perform the transaction.

User Material

Other than personally identifiable information (“Personal Data”), which is covered under the Platform Privacy Policy, any material you transmit or post to this Platform will be considered non-confidential and non-proprietary. the Platform will have no obligations with respect to such material. the Platform and anyone we designate will be free to copy, disclose, distribute, incorporate and otherwise use that material and all data, images, sounds, text and other things embodied in it for any and all commercial or non-commercial purposes.

You are prohibited from posting, uploading or transmitting to or from this Platform any material that:

- Breaches any applicable local, national or international law;
- Is unlawful or fraudulent.

- Amounts to unauthorized advertising; or

- Contains viruses or any other harmful programs.

You may not misuse the Platform (including by hacking).

Any comments or feedback that you submit through the Platform must not:

- Contain any defamatory, obscene or offensive material;

- Promote violence or discrimination;

- Infringe the intellectual property rights of another person;

- Breach any legal duty owed to a third party (such as a duty of confidence);

- Promote illegal activity or invade another’s privacy;

- Give the impression that they originate from us; or

- Be used to impersonate another person or to misrepresent your affiliation with another person.

The prohibited acts listed in the above paragraphs are non-exhaustive. You will pay Talabat for all costs and damages which it incurs as a result of you breaching any of these restrictions.

Talabat will fully co-operate with any law enforcement authorities or court order requesting or directing us to disclose the identity or location of anyone posting any material in breach of the above paragraph.

Acceptable Use Policy

You may not access or use the Platform for any other purpose other than that for which the Platform makes it available. The Platform is for the personal use of users only and may not be used in connection with any commercial endeavors except those that are specifically endorsed or approved by the Platform. In case of any prohibited activities committed by the user, the company has the right to suspend, block or terminate the user's Account and prevent his access to log in the service. Prohibited activities include but not limited to the following:

1. Violate any law, statute, ordinance or regulation
2. Violate applicable laws or industry regulations regarding the sale of alcoholic drinks or prescription drugs and devices
3. Violate copyright, trademark, right of publicity or privacy or any other proprietary right under the laws of account owner's jurisdiction
4. Any illegal products, services or activities, including encouraging, promoting, facilitating or instructing others to engage in illegal activities
5. Payments to or from any listed sanctioned countries. Businesses or businesses with persons subject to international/national sanctions, suspected or convicted of terrorism, financial crime or any other offence
6. Providing false information relating to the customer's identity or business activities
7. Any product, service or activity that finance terrorism
8. Narcotics, steroids, certain controlled substances or other products that present a risk to consumer safety, products including THC, CBD or any other similar substance, any activity that relate to drug paraphernalia
9. Products, services or activities including media and journalism, that could be considered as being of a discriminatory, hateful, racist or exploitative nature, or of inciting harassment, bestiality, mutilation or violence
10. Connected to services where the service provider collects money on behalf of others as a payment services provider, cheque encashment agencies, foreign exchange providers,, money transmitters, traveler's cheques or money orders
11. Involving ammunition, explosives, arms, defense or weapons, replica weapons, gun parts or related parts or accessories, hunting, manufacture/distribution of weapons

12. Services relating to hospitality timeshares or issuing of travel visas
13. Promotion or advertising of products or services other than your own without appropriate authorisation
14. Collecting money without a license when compulsory in the account owner's jurisdiction
15. Multi-level marketing programs, network sales, matrix programs, outbound and inbound telemarketing or other similar programs including pyramid and Ponzi schemes
16. Gambling, betting activities, casinos, lotteries, sweepstakes, penny auctions, services related to fantasy sports or sports forecasting, or sale of value usable “chips” or vouchers connected to this services, certain in-purchasing games
17. Programs, materials or services related to get-rich courses or related to increasing your wealth or gambling
18. Factoring, lending, investment services, financial, escrow or mortgage services, pawn shops
19. Private business directories, businesses specializing in warning letters, liquidation or proxy services
20. Buying or selling stocks, bonds, securities, options, futures, binary options or investment interest in any entity or property, services related to raffles, debt consolidation, insurance brokers, payday lenders, medical collections, scholarship programs, payment protection insurance, currency exchange or FOREX activities
21. Modification chips (e.g. to modify a games console in order to use non-producer hardware or software)
22. Ticket agencies without a license, ticket resale
23. Replica clothes and products, or counterfeit goods
24. Objectionable, offensive, indecent, harassing, threatening, embarrassing, distressing, vulgar, hateful, racially, ethnically or sexually offensive, or otherwise inappropriate behaviour towards the Talabat personnel.
25. Highly rated politically exposed persons (PEP).
26. Engaging in fraudulent practices to claim non-receipt of an order, either partially or completely, repeatedly placing fake orders and canceling them to unjustly benefit

from compensations provided by the Talabat platform, or misusing promotional offers

Talabat reserves the right but is not obligated to do any or all of the following (with no limitation to other actions):

1. investigate an allegation that any content posted on the Platform does not conform to these Terms and determine in its sole discretion to remove or request the removal of the content;
2. remove content which is abusive, illegal, or disruptive, or that otherwise fails to conform with these Terms;
3. monitor, edit, or disclose any content on the Platform; and
4. edit or delete any content posted on the Platform, regardless of whether such content violates these Terms.
5. cancel any Order and/or suspend, deactivate or terminate your Account in its sole discretion if it reasonably suspects or detects fraudulent behavior or activity associated with your Account and/or with your Order and/or any of the reasons named in section 4 of these Terms.
6. The Talabat platform wallet balance will be blocked if it is proven that the customer obtained its value fraudulently

Authority of Talabat

Talabat may temporarily suspend or completely cease the system operation at any time. the Platform shall not have any responsibilities against the Users of Talabat or any third parties due to the temporary suspension or complete cessation of the system operation.

The user name and password shall be displayed and approved by the registered Users. Talabat may prevent its registered Users who have created accounts on the Platform from creating new passwords or from using their old passwords for an indefinite period of time if it is deemed necessary by Talabat.

Talabat does not warrant that its services shall be provided on time in a secure and complete way, the results obtained from the services shall be correct and reliable, and that the service quality shall meet the expectations.

Talabat has the right to back-up and delete all or some of the files, messages which are provided by the Users during the use of services for some periods deemed suitable by the Platform. Talabat shall not be held responsible for back-up and delete processes.

The Platform has the ownership and copyrights arising from the ownership of the information, documents, software, designs, graphics etc. which are produced by itself and/or bought from outside.

The sales of Talabat are limited to the current availability of menus of the firms provided in Talabat. Talabat is not responsible for any item ordered and not delivered by the Merchant due to unavailability.

Talabat has right to post any information, documents, software, designs, graphics, etc. (such as the messages, poets, reports/news, file posted to the bulletin board) which are User generated and uploaded to the system by the Users and/or to transmit them to another place within the Platform deemed as appropriate by Talabat. It is probable that this information is copied and/or posted by other users. In such cases, the users shall not demand any royalty from Talabat.

The obligation to change the information in relation to the price and product specifications, which are provided to sell in Talabat, belongs to the companies which have cyber Merchants in the Platform. In the event of any misinformation relating to the price and specifications of products, Talabat may correct this mistake by canceling the order.

Talabat may provide transition for a User to other Platforms. In this case, the User agrees that Talabat shall not be responsible for the context of the Platforms, which the User may access through its Platform.

Talabat may change in time the services for which any Account is not required to a form, which requires Account. Talabat may provide additional services, change some of the services partially or completely, or transform into a paid service.

This Platform may be unavailable at certain times to allow for maintenance and upgrades. Although we will endeavor to notify Users in advance of any service unavailability, this cannot be guaranteed and we reserve the right to alter or withdraw the service at any time.

Termination of Agreement

Talabat has the right to terminate, suspend or delete your Account and your access to or use of the Platform, including any delivery service we provide to you in respect of an Order, for any reason, including, without limitation, if Talabat, in its sole discretion, considers your use to be unacceptable, or in the event of any breach by you of these Terms. Where appropriate, Talabat will give you the opportunity to state your position, before any termination, suspension or deletion of your account.

Restrictions for Non-Personal and Non-Commercial Use

You agree that the consequences of commercial use or re-publication of content or information of Talabat may lead to serious and incalculable monetary compensation that may not be a sufficient or appropriate remedy and that Talabat will be entitled to temporary and permanent injunctive relief to prohibit such use.

Refund Policy

Talabat takes user satisfaction very seriously. In the case of problems with your goods and services order, please contact Talabat through our live chat and we will assist you. In appropriate cases, if you have already been billed by Talabat on behalf of the Merchant, Talabat will issue full or partial refunds. In the following cases: if you did not receive your order or did not receive your order, you may be issued a full refund; if part of your order is missing, we may issue a partial refund. In every event, we will take into account relevant factors including the details of the order and do our best to ensure your satisfaction. You will receive your refund as Talabat credit on your Talabat account unless you request a refund your bank account (for clarification), cash refunds are not available.

For non-food vertical orders, any cancellation, return, or refund of items or orders shall be in accordance with the consumer protection laws and regulations applicable in Egypt. For the avoidance of doubt non-food vertical orders means any order from a shop under groceries, flowers, electronics, health & beauty.

Price and Payment

Once your order has been accepted, this represents an agreement between you the User and the Merchant. The Merchant has sole responsibility for this order. Cash payments are made directly to the Merchant upon delivery to fulfill the order.

Talabat does not provide any payment service either to you or to third parties. All online payments are processed via your own issuer / payment service provider and the payment service providers in partnership with Talabat.

Prices quoted on the Platform shall be displayed in the applicable country's national currency and subject to applicable tax. You accept that prices and offers on the Platform may vary from the prices and offers offered by our Merchants elsewhere (including their own websites, mobile applications, or at their brick-and-mortar outlets).

The way we display the prices of our goods may vary depending on the Merchant, and, subject to applicable laws, the prices reflected on our Platform. Prices and additional charges (including but not limited to Delivery, Small Basket, Service fees, or Cash on Delivery fees) indicated on the Platform are as at the time of each Order and may be subject to change later. Talabat reserves the right to charge fees (including but not limited to Delivery, Small Order, Service fees, or Cash on Delivery fees) for our services as we deem necessary for our business. The breakdown of the prices and additional charges

(including but not limited to Delivery, Small Order, Service fees, or Cash on Delivery fees) are displayed before checkout. When you place an Order, you agree to all amounts, additional charges and the final 'Total' amount which is displayed to you.

For more information on our charges and fees, see our blog linked here: <https://blog.talabat.com/feesfaqs/>

Payment Methods

When using your Account as payment instrument you may choose from different payment methods as available and indicated on the Platform.

Talabat reserves the right to offer additional payment methods and/or remove existing payment methods at any time at its sole discretion. If you choose to pay using an online payment method, the payment shall be processed by our third party payment service provider(s). With your consent, your credit card / payment information will be stored with our third party payment service provider(s) for future Orders. Talabat does not store your credit card or payment information.

You must ensure that you have sufficient funds on your credit and debit card to fulfill payment of an Order. Insofar as required, Talabat takes responsibility for payments made on our Platform including refunds, chargebacks, cancellations and dispute resolution, provided if reasonable and justifiable and in accordance with these Terms

At the time of checkout, please read the applicable payment terms linked and disclaimers carefully before using any payment method.

Rider Tips

Rider Tip (as defined herein) is applicable for all orders except for cash-on-delivery orders and orders delivered by the Merchant. When you place an order on the Platform, you will have the option to pay a tip to the rider assigned to deliver your order (“**Rider Tip**”). Talabat will collect payment for the Rider Tip using the payment method chosen by you for the order. The rider will receive the full amount of any Rider Tip you choose to make once the delivery is completed.

For orders canceled before delivery, Talabat will process a refund of any Rider Tip paid by you to your Talabat account as Talabat credit or to the original payment method used for the order, as per your request. Refunds will require time to be processed by us, your credit card company and/or your bank. It can take anywhere from 7 - 14 business days (or even up to 30 days for overseas banks) for your refund to be processed and reflected in your account.

Rider Tips are not refundable once the order has been delivered by the rider.

If you have any questions or issues regarding your Rider Tip, please reach out to our customer support via email or the in-app chat feature available on the Platform.

Validity of Talabat records

In the disputes which may arise in relation to their Terms, the User agrees, states and warrants that any bookkeeping entry, microfilm, microfiche and computer records constitute a valid, binding, absolute and exclusive evidence; this article has the characteristics of an evidential contract, and that the User waives in advance all kinds of objections to the specified Talabat records and the right to tender an oath in relation to the fact that these records are kept in due form.

Governing law & competent

These Terms shall be governed by and construed in accordance with the laws of Egypt. Disputes arising in connection with these Platform Terms (including non-contractual disputes) shall be subject to the exclusive jurisdiction of the courts of Egypt.

Severability

If any part of these Terms deemed unlawful, void or for any reason unenforceable, then that provision shall be deemed severable from these Terms and shall not affect the validity and enforceability of any of the remaining provisions of these Terms. No waiver by us shall be construed as a waiver of any preceding or succeeding breach of any provision.